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File No.: EXP202304202

## SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On 14/03/2023, a Complaint Report was received by this Agency from the GUARDIA CIVIL - PUESTO DE SADABA, ZARAGOZA (hereinafter the complainant), regarding a possible breach of the provisions of personal data protection regulations by A.A.A. with NIF \*\*\*NIF.1 (hereinafter, the defendant).

In the forwarding letter, the complainant provided a Complaint Report dated 10/03/2023, which indicates that the defendant is responsible for a surveillance camera aimed at the public road, located at the top of a concrete block wall of a warehouse belonging to the defendant, located at \*\*\*ADDRESS.1, without prior administrative authorization for this, existing indications of a possible breach of the provisions of Article 5.1.c) of the GDPR.

The same facts were processed under file EXP202210494, with no record of corrective measures being adopted.

The documents provided are:

- Reports made by the FFCCSE

SECOND: The defendant was sent a letter indicating the obligations it had regarding data protection and video surveillance, resulting in notification on 17/10/2022, following the submission of a report from the complainant regarding the same facts on 04/10/2022.

THIRD: On 23 August 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FOURTH: The aforementioned initiation agreement was notified according to the rules established in Law 39/2015, of 1 October, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), on 31/08/2023, as recorded in the initiation agreement contained in the file and collected by B.B.B., and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the defendant.

Article 64.2.f) of the LPACAP - a provision of which the defendant was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed. Therefore, taking into account that the defendant has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

### PROVEN FACTS

FIRST: It is recorded, according to the Complaint Report, that the defendant is responsible for a surveillance camera aimed at the public road, located at the top of a concrete block wall of a warehouse that belongs to it.

### LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of 5 December, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data

Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

"processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, collation or interconnection, limitation, erasure or destruction;"

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The images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Article 5.1(c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through systems of cameras or video cameras with the aim of preserving the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1(c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is appropriate and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the

installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

In the present case, from the documentation provided in the file, it can be inferred that the reported party, although it modified the initial location of the camera after being warned about it, has placed it again oriented towards the public road, in such a way that it records the same places where people and vehicles pass as it did initially.

#### IV

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system with the aim of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

“Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means.”

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

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4.- The images may be retained for a maximum period of one month, except in those cases where they must be kept to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4. The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

It is also of interest, in the case of processing low-risk data, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the data controller regarding the processing of personal data they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

#### V

It is considered that the facts presented violate the provisions of Article 5.1.c) of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to graduate the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and as provided in Article 76 of the LOPDGDD, regarding section k) of the aforementioned Article 83.2 GDPR. For all these reasons, it is considered that the corresponding sanction is an administrative fine of 500 euros.

VII

Article 58.2 d) of the GDPR states that each supervisory authority may “order the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame...”. In this case, the party being claimed must proceed, within 30 days from the receipt of this resolution, to:

- Prove that it has proceeded to remove the camera or video camera system from the current location or to reorient it, in such a way that the viewing of the images observed evidences that the public road is not captured.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF \*\*\*NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED euros).

SECOND: TO ORDER A.A.A., with NIF \*\*\*NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days, prove to have complied with:

- the removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed evidences that the public road is not captured.

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the public road.

THIRD: NOTIFY this resolution to A.A.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must

comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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